IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CA(CAA)/78(CHE)2022

(Under Sections 230 to 232 of the Companies Act, 2013)

In the matter of *Scheme of Amalgamation of*

SANMAR SHIPPING LIMITED
CIN NO: U63090TN1994PLC028616
9, Cathedral Road,
Chennai – 600 086

... First Applicant / Transferor Company

Along with

POES GARDEN PROPERTIES LIMITED
CIN NO: U61100TN2000PLC045797
9, Cathedral Road,
Chennai – 600 086

... Second Applicant / Transferee Company

And

THEIR RESPECTIVE SHAREHOLDERS

Order Pronounced on 20th March, 2023

CORAM

ASHOK KUMAR BHARADWAJ, MEMBER (JUDICIAL)

SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): B. Chandra, PCS

Per: **SAMEER KAKAR, MEMBER (TECHNICAL)**

The hearing of this Company Petition has been conducted through video conferencing platform.

2. This is a Joint Application filed by the Applicant companies, namely **SANMAR SHIPPING LIMITED** (Hereinafter "Transferor Company") and **POES GARDEN PROPERTIES LIMITED** (Hereinafter "Transferee Company") with its shareholders under section 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (Hereinafter referred to as the "Scheme") proposed by the Applicant Companies herein with its Shareholders. The said Scheme is placed at Page Nos. 315-341 of the typed set along with the Application bearing No. CA(CAA)/78(CHE)/2022.

3. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	**SECURED CREDITORS**	**UNSECURED CREDITORS**
TRANSFEROR COMPANY	To dispense with	To dispense with	To dispense with
TRANSFEREE COMPANY	To dispense with	NA	To dispense with

4. From the certificate of incorporation filed, it is evident that

(i) The Transferor Company is a Public Limited Company incorporated under the provisions of Companies Act, 1956 on 15.09.1994 with CIN: U63090TN1994PLC028616. The Authorised Share Capital of the Transferor Company is Rs. 32,00,00,000 (Rupees Thirty Two Crores) consisting of 1,70,00,000 (One Crore and Seventy Lakh) Equity Shares of Rs. 10 each and 1,50,00,000 Compulsorily Convertible Preference Shares of Rs. 10 each. The Issued, Subscribed and Paid-up Capital is Rs. 15,30,00,000 (Rupees Fifteen Crore and Thirty Lakhs) divided into 1,53,00,000 (One Crore and Fifty-Three Lakh) Equity shares of Rs. 10 each. The Registered Office Address of the Transferor Company is 9, Cathedral Road, Chennai, Tamil Nadu – 600086.

(ii) The Transferee Company is a Public Limited Company incorporated under the provisions of the Companies Act, 1956 on 25.09.2000 with CIN: U61100TN2000PLC045797. The Authorised Share Capital of the Transferee Company is Rs. 16,10,00,000 (Rupees Sixteen Crore and Ten Lakhs) comprising of 1,00,000 (One Lakh) Equity Shares of Rs. 10 each and 1,60,00,000 (One Crore and Sixty Lakh) Preference Shares of Rs. 10 each. The Issued, Subscribed and Paid-up Share Capital is Rs. 5,00,000 (Rupees Five Lakh) divided into 50,000 (Fifty Thousand) equity shares of Rs. 10 each. The

Registered Office Address of the Transferee Company is No. 9, Cathedral Road, Chennai, Tamil Nadu – 600086.

5. An affidavit in support of the above application sworn for and on behalf of the Applicant Companies by the following Shareholder/Director as listed hereunder: -

(i) Transferor Company, Mr. P U Aravind in the capacity of Director and Authorised person.

(ii) Transferee Company, Mr. S. Subramanian in the capacity of Director and Authorised Person.

is placed along with the Application and it is also represented that the Registered office of the Applicant Companies are situated within the jurisdiction of the Registrar of Companies, Chennai.

6. **SANMAR SHIPPING LIMITED - TRANSFEROR COMPANY**

(i) There are **Fifteen (15)** Equity Shareholders in the Company, out of which **Twelve (12)** shareholders, consisting of 91.503% of the total shareholding, whose consent affidavits are placed as **Pgs. 258-305** and the certificate issued by the Statutory Auditor of the list of Shareholders, is placed as **Page No. 90** of the typed set filed with the application and sought dispensation with holding the meeting.

(ii) There are **Three (3)** Secured Creditors, whose consent affidavits constituting 100% of the total credit is placed as **Pgs. 172-191** and the certificate issued by the Statutory Auditor of the list of Secured

Creditors is placed at **Pgs. 170-171** of the typed set filed with the application and sought dispensation with holding the meeting.

(iii) There are **Eighty-Eight (88)** Unsecured Creditors and **Two (2)** Charter Hire charges Creditors. The Certificate of the Statutory Auditor of the two Charter hire charges is placed at **Pg. No. 193** and the Consent for the Scheme of the Charter hire charges Creditors is placed at **Pgs. 194-204** of the typed set filed with the Application. The Certificate of the Statutory Auditor certifying the settlement of unsecured creditors to an extent of 97.11% is placed at **Pgs. 205-208** and the consent of the Six Unsecured Creditors is placed at **Pgs. 210-233** and the certificate of the Statutory Auditor of the list of Unsecured Creditors is places at **Pg. No. 209** of the typed set filed with the Application and sought dispensation with holding meeting

7. **POES GARDEN PROPERTIES LIMITED - TRANSFEROR COMPANY**

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed as **Pgs. 235-256** and the certificate issued by the Statutory Auditor of the list of Shareholders, is placed as **Page No. 26** of the typed set filed with the application and sought dispensation with holding the meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Statutory Auditor to this effect is placed at **Page No. 79** of the typed set filed with the Application.

(iii) There are **Two (2)** Unsecured Creditors and the certificate of the Statutory Auditor of the list of Unsecured Creditors is placed at **Pgs. 80-81** and the consent by way of affidavit from the Unsecured creditors to the extent of 100% is placed at **Pgs. 82-88** of the typed set filed with the Application and sought dispensation with holding meeting.

8. We have perused the application and the connected documents/papers filed therewith including the Scheme contemplated by the Applicant Companies.

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Financial Statements as on 31.03.2022 and the Provisional Statement of Assets and Liabilities as at 01.09.2022.

10. The Board of Directors of the Applicant Companies vide meeting held on 21.10.2022 have unanimously approved the proposed Scheme as contemplated above and copies of the resolution passed thereon have been placed on record by the Applicant Companies.

11. The Appointed date as specified in the Scheme shall be 01.04.2022.

12. The Statutory Auditors of the Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of the Companies Act, 2013 and

the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

13. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

A. <u>In Relation to the Transferor Company:</u>

(i) **With respect to the Equity Shareholders**

Since it is represented by the Transferor Company that there are **Fifteen (15)** Equity Shareholders in the Company out of which 12 Shareholders comprising 91.503% of the Total Shareholding, whose consents by way of affidavits have been obtained and placed on record, the necessity of convening, holding and conducting the meeting is dispensed with.

(ii) **With Respect to Secured Creditors**

Since it is represented by the Transferor Company that there are **Three (3)** Secured Creditors in the Company whose consents by way of affidavits have been obtained from all the Creditors and placed on record, the necessity of convening, holding and conducting the meeting is dispensed with.

(iii) **With Respect to Unsecured Creditors**

It is represented by the Transferor Company that there are **Eighty-Eight (88)** Unsecured Creditors and **Two (2)** Charter Hire Charge Creditors in the Company. Out of the 88, 79 Creditors have been fully settled. Consents by way of affidavits have been obtained from the remaining Unsecured creditors having 98.63% of the total credit and the Hire Charge Creditors are placed on record, the necessity of convening, holding and conducting the meeting is dispensed with.

B. <u>In Relation to the Transferee Company:</u>

(i) **With respect to the Equity Shareholders**

Since it is represented by the Transferee Company that there are **Seven (7)** Equity Shareholders in the Company whose consents by way of affidavits have been obtained and placed on record, the necessity of convening, holding and conducting the meeting is dispensed with.

(ii) **With Respect to Secured Creditors**

Since it is represented by the Transferee Company that there is **NIL** Secured Creditors in the Company, hence the necessity of convening a meeting does not arise.

(iii) **With Respect to Unsecured Creditors**

Since it is represented by the Transferee Company that there are **Two (2)** Unsecured Creditors whose consents by way of affidavits

have been obtained and placed on record, the necessity of convening, holding and conducting the meeting is dispensed with.

14. Accordingly, the Application stands allowed and the Applicant Companies are directed to file the second motion Application within a period of fourteen (14) days from the date of this order.

— Sd —

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd -

ASHOK KUMAR BHARADWAJ
MEMBER (JUDICIAL)

Order pronounced under Rule 151 of NCLT Rules 2016, by Hon'ble Technical Member Sameer Kakar on behalf of the Bench comprising of ***Ashok Kumar Bhardwaj, Member (Judicial)*** *and* ***Sameer Kakar, Member (Technical).***